

Court No. - 5

Case :- CONTEMPT APPLICATION (CIVIL) No. - 176 of 2016

Applicant :- Rajendra Singh Yadav

Opposite Party :- Rang Lal Pal, The Executive Engineer, Power Distribution Div

Counsel for Applicant :- Adya Prasad Tewari, Om Prakash Katiyar

Hon'ble Surya Prakash Kesarwani, J.

Heard learned counsel for the applicant.

By order dated 14.12.2015 passed in Writ-C No.66159 of 2015 filed by the applicant, the writ Court directed as under :

"The petitioner, therefore, can avail of this remedy provided under Clause 6.5(b) of the Code. We, therefore, dispose of this petition with the observation that in case the petitioner invokes the provisions of Clause 6.5 of the Code, an appropriate decision shall be taken expeditiously."

It is stated that remedy available under Clause 6.5(b) of the U.P. Electricity Supply Code, 2005 was invoked by the applicant by moving an application dated 21.12.2015, which was to be decided by the authority concerned within a week, but the opposite party has wilfully not complied with the order and thus has committed civil contempt liable for punishment under Section 12 of the Contempt of Courts Act 1971.

Considering the facts and circumstances of the case one more opportunity is afforded to the opposite party to comply with the aforesaid order of the writ Court within a further period of ten days from the date of production of a certified copy of this order.

With the aforesaid observations, this application is disposed of at this stage with liberty to the applicant to move a fresh application if the order is not complied with by the opposite party.

Order Date :- 14.1.2016

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